

25CHCV02505 25CHCV02505

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Case Number: 25CHCV02505 Hearing Date: July 17, 2026 Dept: F43

Dept. F43

Hearing Date: 07-17-26

Case # 25CHCV02505, Quintero v.

Geragosian

Trial Date: 10-30-28

MOTION TO COMPEL

RESPONSES TO FORM INTERROGATORIES AND SPECIAL INTERROGATORIES

MOVING PARTY: Defendant Saro Geragosian

RESPONDING PARTY: No response was filed.

RELIEF REQUESTED

Order compelling plaintiff Daniela Haro's objection-free responses to defendant's first sets of form interrogatories and special interrogatories and imposing monetary sanctions of \$435 against plaintiff Haro and her counsel of record, Igor Fradkin and Downtown LA Law Group, jointly and severally.

RULING: Motion is granted. The court awards Defendant \$435 in monetary sanctions.

SUMMARY OF ACTION

The personal injury action arises out of a vehicle collision that occurred on State Route 118 on August 31, 2023. Plaintiffs Lilia Quintero and Daniela Haro allege that defendant Saro Geragosian (Defendant) collided with their vehicle while changing lanes and immediately fled the scene of the collision. As a result, Plaintiffs suffered injuries and damages. On July 16, 2025, Plaintiffs filed a complaint against Defendant, pleading four causes of action: (1) motor vehicle; (2) negligence; (3) misdemeanor hit and run in violation of Vehicle Code section 20001, subdivision (a); and (4) intentional infliction of emotional distress.

On September 30, 2025, Defendant filed a demurrer to the Complaint's third and fourth causes of action. The court sustained the demurrer without leave to amend the third cause of action and with leave to amend the fourth cause of action. (10/23/2025 Minute Order, at p. 8.) The court also allowed Plaintiffs to file and serve an amended complaint within 30 days of the October 23rd Order. No amended complaint has been filed. Also on September 30, 2025, Defendant filed a motion to strike punitive damages from the complaint. Plaintiff Lilia Quintero filed an opposition on December 23, 2025. The court granted the motion with leave to file an amended complaint within 30 days of January 5, 2026. No amended complaint was filed.

On October 8, 2025, Defendant served plaintiff Daniela Haro with his first sets of special interrogatories and form interrogatories. (Declaration of Nageen C. Jalali ¶ 2, Exh. A.) The response deadline was November 10, 2025. Defendant granted plaintiff Haro six deadline extensions from November 7, 2025 through January 19, 2026, and denied a seventh extension request. (Id. ¶¶ 3-4, Exh. B.) On January 30, 2026, defense counsel emailed plaintiff's counsel, requesting the status of the responses. (Id. ¶ 4, Exh. B at p. 1.) Plaintiff Haro unilaterally selected a responsive deadline of February 2, 2026, to serve responses. (Id. ¶ 4.) However, no responses have been served. (Id. ¶ 5.)

On May 27, 2026, Defendant filed the instant motion to compel plaintiff Daniela Haro's objection-free, verified responses to his first sets of form interrogatories and special interrogatories and to impose \$435 in monetary sanctions against plaintiff Haro and her counsel of record, jointly and severally. No

opposition was filed.

ANALYSIS

A. Compelling Responses to Interrogatories

A propounding party may move to compel responses to form or special interrogatories where the responding party fails to provide any responses. (Code Civ. Proc., § 2030.290, subd. (b).) The propounding party must show the interrogatories were properly served, that the time to respond expired, and no response has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.) Unless excused by a protective order, the responding party must serve responses (an answer, objection, or election to allow inspecting or copy records) within 30 days after the interrogatories are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.270.) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

When the propounding party serves more than 35 special interrogatories, the responding need only respond to the first 35 special interrogatories unless the propounding party attaches a declaration of additional discovery to the special interrogatories. (Code Civ. Proc., §§ 2030.030, subds. (b)-(c), 2030.50, 2030.070, subd. (a).) However, if the responding party fails to timely object to additional special interrogatories, the responding party waives the objection. (See Leach, *supra*, 111 Cal.App.3d at pp. 905-906.)

After reviewing the moving papers, the court finds Defendant properly served plaintiff Haro with the special interrogatories and form interrogatories. But plaintiff Haro failed to serve responses by the original deadline, the subsequent deadline extensions, or February 2, 2026. Moreover, plaintiff Haro has not filed an opposition with a substantial justification for missing responses.

Therefore, the court grants defendant Saro Geragosian's motion to compel responses to his first sets of form interrogatories and

special interrogatories. Plaintiff

Daniela Haro is ordered to serve objection-free, verified responses and responsive documents within 30 days of this order.

B. Sanctions

Defendant asks the court to impose \$435 in monetary sanctions against plaintiff Daniela Haro and her counsel of record. (Jalali Decl. ¶ 6.)

The court must impose sanctions against any party who “unsuccessfully makes or opposes a motion to compel responses to interrogatories unless, it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).) The court may also award sanctions even if “the requested discovery is provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1030(a).)

Defendant is entitled to sanctions because plaintiff Haro has failed to serve code-compliant, verified responses or provide a substantial justification for not doing so.

Defendant’s counsel, Nageen C. Jalali, charges \$250 per hour. (Jalali Decl. ¶ 6.) The request includes: (1) 1.5 hours preparing the motion—\$375; and (2) a \$60 filing fee.

The court finds the requested hourly rate and time billed is reasonable.

Therefore, the court grants Defendant’s request for \$435 in monetary sanctions.

CONCLUSION and ORDER

The court grants defendant Saro Geragosian’s motion to compel plaintiff Daniela Haro’s responses to defendant’s first sets of form interrogatories and special interrogatories.

The court orders Plaintiff to serve code-compliant, objection-free, and verified responses within thirty (30) days of the issuing of this order.

The court awards defendant Saro Geragosian \$435 in monetary sanctions. Plaintiff Haro and her attorney of record are ordered to pay defense counsel within thirty (30) days of the issuing of order.

Defendant Saro Geragosian to give notice.